

Cal.App.5th at 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81. “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions.” *Id.* at 584.

Having considered the totality of the evidence, the Court does not conclude that Plaintiff has adequately shown that Ms. Bracy is likely to be a material witness. And even if some tangential testimony were needed from her in relation to things like authentication of documents or other general matters, the Court concludes that lesser remedies are likely available. Ms. Bracy’s clients’ right to be represented by counsel of their choice (and to represent herself if she chooses) and their interests in avoiding the need for replacement counsel, strongly outweigh any relatively minor concern over any such tangential testimony that might be needed from Ms. Bracy. In addition, it appears that Plaintiff’s interest in disqualifying Ms. Brach stems from more tactical considerations, seeking to prevent her from participating as counsel given the close relationship with the other named defendants.

Furthermore, the Court does not find that Plaintiff has made a convincing demonstration that detriment to her or injury to the integrity of the judicial process would result from Ms. Bracy’s ongoing representation.

Nor does the Court conclude that the issues raised regarding asserted discovery compliance or lack thereof justifies or supports disqualification.

Disposition

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is DENIED.
2. The Court shall issue the order.

10. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
***HEARING ON MOTION IN RE: COMPEL**
FILED BY:
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a motion to compel compliance with deposition subpoena for production of business records (the “Motion to Compel”) to third party S. G. Banks, Inc. (the “Third Party”) on February 6, 2026. The motion was set for hearing on June 29, 2026 and, later, continued to September 21, 2026.

Background

The deposition subpoena was served on the Third Party on November 10, 2025. See Declaration of Harry J. Moren re Motion to Compel Compliance filed February 6, 2026, ¶13 and **Exhibit 2** thereto (including Proof of Service dated November 10, 2025). No responses to the subpoena were received by the filing of the Motion to Compel. *Id.* at ¶14.

The City was unable to serve the Third Party and filed an *ex parte* application for service by delivery to the Secretary of State. See Declaration of Harry J. Moren re Ex Parte Application filed May 19, 2026, ¶21-23 and **Exhibits 5, 6, and 7** thereto; Ex Parte Application re Authorization of Service filed May 19,

2026. The application was approved by the Court on May 22, 2026. See Order re Authorizing Service filed May 26, 2026.

Per the City, the Secretary of State refused to comply with this order because such service was only authorized for service of process and not as to service for subsequent papers. See Reply re Motion to Compel Compliance filed June 22, 2026 (the “June Reply”), ¶13; Declaration of Harry J. Moren re Reply filed June 22, 2026, ¶15 and **Exhibit 6** thereto (including letter from the California Secretary of State dated June 2, 2026).

In the prior June Reply paper, the City requested the hearing on the Motion to Compel be held in abeyance pending service and the hearing continued. See June Reply, ¶16.

Accordingly, the matter was continued to September 21, 2026. See Minute Order dated July 2, 2026. The moving party was directed to timely serve this motion before the next hearing or else advise the Court if it is withdrawn. *Id.*

In a recently filed further Reply paper, the City requests that the Court continue the hearing for 90 days to allow the City additional time to complete service on Banks. See Reply filed September 15, 2026.

Analysis

The Court in its discretion will continue the hearing to December 28, 2026, 9:00 am, in Department 34.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby **CONTINUED** to **December 28, 2026, 9:00 am**, in **Department 34**.
2. The City shall timely serve this motion before the next hearing or else advise the Court if it is withdrawn.
3. The Court shall issue the order after hearing.
4. Moving party to file an amended notice of motion and serve such amended notice on the Third Party along with a copy of this order and the underlying papers.

11. 9:00 AM CASE NUMBER: C25-03626
CASE NAME: JUAN GARCIA GALAN VS. NATIONS FOODSERVICE, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONS FOODSERVICE, INC.,
TENTATIVE RULING:

Defendant Nation’s Foodservice, Inc. (“Defendant”) filed a Motion to Compel Arbitration on May 13, 2026 (the “Motion to Compel Arbitration”). The Motion to Compel Arbitration was set for hearing on September 21, 2026. No opposition was filed.